

Authority for Personal Data
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The State Secretary for Benefits and Customs
P.O. Box 20201
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Date

January 10, 2023

Our reference

z2022-5715

Your letter dated

September 27, 2022

Your reference

2022-234810

Subject

Customs Camera Surveillance Act

Dear Ms. de Vries,

In your letter dated September 27, 2022, the Authority for Personal Data (AP) was consulted based on the provisions of Article 36, paragraph 4, of the General Data Protection Regulation (GDPR) regarding the draft bill to amend the General Customs Act concerning camera surveillance and the processing of personal data (hereinafter: the draft). The AP received a corrected version on October 4, 2022.

The explanatory memorandum is too brief regarding the description and assessment of the risks for individuals related to camera surveillance by drones. The AP objects to this point in the draft and advises that the procedure should not continue unless the objection is resolved.

Scope of the draft

The customs authority primarily has the task of supervising international trade within the European Union.¹ Secondly, the customs authority has supervisory responsibilities in areas covered by the General Customs Act (Adw). This latter aspect often concerns tasks for which the European Union (EU) is not competent or for which there is shared competence with the EU.² The Union Customs Code (DWU) has been largely declared applicable to these tasks.³

1 Article 3 of Regulation (EU) No. 952/2013 of the European Parliament and of the Council of October 9, 2013, establishing the Union Customs Code (OJ EU 2013, L 269) (DWU).

2 Article 1:1 in conjunction with the annex to the Adw.

3 Article 1:5 Adw.

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For the purpose of these supervisory tasks, customs can take control measures. In this context, customs uses cameras, among other things. Personal data may also be processed, although customs supervision and customs control are primarily focused on goods and not on individuals.

Customs uses camera surveillance where personal data may be collected for the following purposes:

1.

Systematically mapping risks for conducting risk analysis within the framework of risk management;

2. Limiting exposure to risks;
3. Determining whether a customs control should be initiated;
4. Supporting a customs control.⁴

For camera surveillance, customs uses various types of cameras, both fixed and mobile.⁵ These are cameras owned by customs and cameras from third parties for which an agreement has been concluded with those third parties.⁶

Based on this draft bill, cameras that process personal data can only be deployed if they are focused on territorial waters, inland waters, and main shipping routes, at locations where the inspector is authorized to conduct a control⁷, or directed at means of transport carrying goods subject to customs supervision or suspected of carrying goods that have been evaded from customs supervision. Additionally, with the consent of a civil servant designated by ministerial regulation in urgent cases, cameras may be deployed at locations other than those mentioned.

At airports and at ferry terminals, cameras may also register health data to determine whether a customs control should be initiated.⁸ The background to this is that customs wants to assess whether the relevant health characteristic is not being misused to evade customs oversight.⁹

4 Article 1:23a Adw. Examples of the use of cameras processing personal data by customs include:

- Camera footage taken at airports of incoming and outgoing luggage and cargo. Attention is given to possible irregularities with the goods, after which they are (further) inspected.
- The use of camera footage in the Port of Rotterdam for monitoring the flow of goods (for example, container storage). This occurs with both fixed and mobile cameras (usually drones).
- Mobile camera surveillance in the context of customs oversight over various Dutch inland and coastal waters, such as customs oversight over the Wadden Sea, the coastal strip, and the Zeeland waters with a view to possible smuggling of goods.

5 The fixed cameras currently have, in part, a zoom function, 350-degree view, and thermal imaging capability. Mobile cameras are also currently used that are mounted on drones and equipped with thermal imaging cameras and zoom functionality. Additionally, camera footage obtained from the Coast Guard is utilized.

6 For example, in the Port of Rotterdam or at Schiphol; Article 1:23a, paragraph 6, Adw. The Coast Guard (see footnote 5) is also such a third party.

7 except for the residences present in or on those locations (Article 1:23a, paragraph 4, under b and Article 1:26 Adw).

8 including subjecting the traveler to a body search (Article 1:23b Adw).

9 This may involve individuals who may be carrying smuggled goods under their clothing or hiding them in aids for the physically disabled. For example, seemingly pregnant women, seemingly overweight individuals, and individuals with a limb in a cast (Explanatory Memorandum p. 4,17).

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For a number of specific goods movements, it is determined that the camera may only be directed at the means of transport with which the goods are transported.¹⁰

The presence of fixed cameras that could process personal data must be clearly communicated.¹¹

Finally, further rules will be established in the General Customs Decision to ensure the correct implementation and application of these new articles in the Adw. Special attention will be given to the camera plan that the Minister of Finance must prepare annually.¹²

****Advice****

Risks for data subjects insufficiently mapped (regarding drones)

The explanatory memorandum is too brief regarding the description and assessment of the risks for data subjects in connection with camera surveillance by drones.¹³

In the explanation of a regulation in which the processing of personal data plays an important role, the interests of data controllers and data subjects in relation to the purposes of the processing must be explicitly weighed.¹⁴ For this, the risks for data subjects must be known. A Data Protection Impact Assessment (DPIA) is the appropriate instrument for this purpose. It is therefore common for the explanation to include a passage about the DPIA results.

Although the concept is based on a DPIA (from 2021), this DPIA is no longer current in that the use of drones has not been assessed—while this is indeed part of the concept. An addition to the 2021 DPIA has been provided to the AP in this regard.¹⁵ However, this addition does not follow the Model DPIA Rijksdienst¹⁶ and is much more concise than this model prescribes.

A DPIA is mandatory when developing policies and regulations from which processing of personal data arises.¹⁷ A DPIA is particularly indicated according to the GDPR when new technologies are used in processing.¹⁸ The use of drones is such a new technology. Therefore, a DPIA for camera surveillance by drones has also been made mandatory in the Netherlands.¹⁹

The AP advises to update and expand the 2021 DPIA to include an assessment of the use of drones, in accordance with the Model DPIA Rijksdienst, and to explicitly weigh the outcomes in the final determination of the concept.

****Visibility of camera surveillance (drones)****

The concept states that the presence of fixed cameras that could process personal data must be clearly communicated. The concept does not address the visibility of mobile camera surveillance.

The AP advises that the concept should also address the visibility of mobile camera surveillance (drones).

****Drones at airports and ferries****

At airports and ferries, camera surveillance is not only used to monitor goods movements but also to detect whether passengers are smuggling. Here, the cameras are directed at individuals, and filming individuals is not merely a side effect. The Addition to the DPIA²⁰ seems to indicate that only fixed cameras are used at these locations. However, the concept does not clarify this.

Since (certain) cameras at airports and ferries are directed at individuals and also process special personal data, it is relevant whether or not mobile cameras (drones) are used here.

The AP advises indicating in the explanation whether mobile camera surveillance is also used at airports and ferries, and if so, to substantiate the necessity of this.

****Relationship between articles 1:23c -1:23f Adw and article 1:23a, fourth paragraph, under c, Adw****

Articles 1:23c -1:23f Adw stipulate for a number of specific goods movements that the camera may only be directed at the means of transport with which the goods are transported. However, article 1:23a, fourth paragraph, under c, Adw also deals with means of transport, concerning those that pose a risk.²¹ The concept does not clearly indicate what the relationship is between articles 1:23c -1:23f Adw on the one hand and article 1:23a, fourth paragraph, under c, Adw on the other hand.

²⁰ See footnote 15.

²¹ The term 'risk' is defined in article 5, part 7, DWU.

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The AP advises clarifying this in the explanatory memorandum.

Delegation in Article 1:23h Adw

The draft stipulates that further rules will be established by or pursuant to a general administrative regulation to ensure the proper execution and application of the provisions included in the draft.

However, the explanatory memorandum states that these further rules will be included in the General Customs Decision (an amvb).

The AP advises to delete the phrase “or pursuant to” in Article 1:23h Adw.

Publication of the advice

The AP intends to make this advice public on the website www.autoriteitpersoonsgegevens.nl as soon as the text of the (amended) draft is made public. The AP would like to be informed of the expected timing of the publication as soon as it is known.

Yours sincerely,

Authority for Personal Data,

Aleid Wolfsen

Chairman